

Real Estate (Regulation and Development) Act, 2016 (RERA)
Authority: Ministry of Housing and Urban Affairs, Government of India
Year: 2016

=====

Section 14. Adherence to sanctioned plans and project specifications & 5-year defect liability

Section 14. Adherence to sanctioned plans and project specifications by promoter.

(1) The proposed project shall be developed and completed by the promoter in accordance with the sanctioned plans and layout plans approved by the competent authority.

(2) The promoter shall not make any additions and alterations in the sanctioned plans without the previous consent of the person.

(3) In case any structural defect or any other defect in workmanship, quality or provision of services is brought to the notice of the promoter within a period of five years by the allottee from the date of handing over possession, it shall be the duty of the promoter to rectify such defects without further charge, within thirty days.

Section 18. Return of amount and compensation for builder delay

Section 18. Return of amount and compensation.

(1) If the promoter fails to complete or is unable to give possession of an apartment, plot or building:

(a) in accordance with the terms of the agreement for sale or duly completed by the date specified therein; or

(b) due to discontinuance of his business as a developer on account of suspension or revocation of registration under this Act or for any other reason;

he shall be liable on demand to the allottees, in case the allottee wishes to withdraw from the project, without prejudice to any other remedy available, to return the amount received by him in respect of that apartment, plot, building, with interest at such rate as may be prescribed in this behalf including compensation in the manner as provided under this Act.

Section 31. Filing of complaints with Real Estate Regulatory Authority

Section 31. Filing of complaints.

(1) Any aggrieved person may file a complaint with the Real Estate Regulatory Authority (RERA) or the Adjudicating Officer for any violation or contravention of the provisions of this Act or the rules and regulations made thereunder against any promoter, allottee or real estate agent.